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The Case for Tamper-Proof Smart Glasses

Background

Smart glasses with cameras look a lot like regular eyeglasses. The camera sits in the frame and records photos and video of whatever the wearer is looking at, and the only indicator a nearby person gets is a small light on that frame. The recording is so seamless that both the wearer and the people around them often do not realize it is happening (Agho et al., 2026). What used to be a prototype is now a normal product that many people can afford to buy (Ubrani, 2026). In the United States it is legal to point a camera at a stranger in a public place, so banning public recording is not a realistic option and would collide with free speech protections in the Constitution. The open question now stands: Should camera-equipped smart glasses be legally required to have tamper-proof recording indicators?

The complaint about these glasses is nothing new and more than ten years old. Google released a product called Google Glass in 2013 and 2014, and although only a small number of people bought one, there was immediate pushback from the public. Denning et al. (2014) studied twelve sessions in coffee shops and interviewed thirty-one bystanders. Reactions were split between two groups, with some people indifferent and others uncomfortable. The uncomfortable group agreed on the same thing: They didn’t like being recorded without their knowledge. Google Glass then failed commercially and the product disappeared.

The product category came back stronger a decade later as sales of smart glasses rose 167 percent in 2026 compared with the year before with Meta holding about 69 percent of the market (Ubrani, 2026). Alongside that growth, a BBC investigation found men using these glasses to film women without their consent and then posting the videos on TikTok and Instagram. One

instance was when a woman filmed on her lunch break reached 1.3 million views and displayed her phone number, after which she was buried in calls and messages from strangers (Agho et al., 2026). The indicator meant to disclose recording did not do that job, because the BBC found multiple videos online showing how the light can be covered or disabled entirely, and none of the women who spoke to the BBC said they noticed it (Agho et al., 2026). Recently, California introduced Senate Bill 1130 which includes a law that prohibits covering and tampering with indicator light on recording devices (Invasion of Privacy, 2026).

Perspective from Both Ends of the Lens

There are two groups that stand on opposite sides of this issue. The first group are smart glasses producers and consumers, which includes companies such as Meta that produce the glasses, and consumers, people who create online content, film in public, and accessibility users such as blind and low-vision users who use the camera to help aid in navigating surroundings. These three sets of people want the glasses for completely different reasons, but all want the glasses to remain affordable. The second group are bystanders and privacy advocates, the people who get recorded without agreeing to it along with the researchers, activists, and lawmakers who speak on their behalf.

Pro Smartglasses: Producers and Consumers

Values: This group places a high value on innovation, free expression, and the legal right to use a camera in public. Convenience matters to them as well, because these types of cameras allow them to provide point-of-view recordings and less public scrutiny compared to other more obvious means of recording in public. Accessibility carries the most weight of all, since these glasses give blind and low-vision users a working tool for a small fraction of what dedicated assistive devices cost.

Position: This group's position already stands on steady ground. Because recording a stranger in public is legal, they argue that anyone who wants to restrict the device has to make the case for it, not the people already using it. They see the glasses as a general purpose tool, the way a hammer is, and they would perceive the BBC cases as a few people misusing it. A rule about how the glasses must be built would apply to every buyer, even though the documented harm came from a small fraction of wearers. To this group, this could inadvertently impact the majority of users. They also point out that the benefit to blind and low-vision users exists only because so many ordinary customers buy these glasses, since high sales volume is what keeps the price low (Kelley, 2025; Ubrani, 2026).

Claims: This group begins from a claim of fact, in that recording in public spaces is legal in the United States. They add a claim of definition, in that public spaces are in fact public and there should be no expectation of privacy. A claim of resemblance further adds to the point because phones, dashboard cameras, and police body cameras all record strangers without any required indicator. Their claim of cause would argue that a device-level requirement would raise costs, reducing the sales volume that keeps the glasses affordable as an assistive device (Kelley, 2025). And finally comes a claim of policy. Lawmakers should penalize harmful conduct instead of redesigning the device.

Against Smartglasses: Bystanders and Privacy Advocates

Values: Bystanders and privacy advocates prioritize consent and personal autonomy. They value dignity and decency, along with control over personal information and personal safety. Their main concern is more narrow than privacy in general. They want the ability to easily tell that a camera is running (O'Hagan et al., 2022).

Position: For this group, the legality of public recording doesn't matter. What matters is whether a person can tell that recording is happening. The indicator light meant to give that notice failed because the light can be covered or disabled and none of the women interviewed noticed it (Morse, 2026; Agho et al., 2026). These incidents are no longer anecdotal. An early study of 350 Instagram videos posted between 2023 and 2026, many related to pick-up-artists and their communities, classified roughly 60 percent of interactions in covert first-person videos. These videos indicate potential harassment, and found abusive comments directed at the women in about 43 percent of videos analyzed (University of Sydney, 2026).

Claims: Bystanders begin from a claim of fact. The BBC documented women secretly filmed and posted online, including one whose phone number reached 1.3 million viewers (Agho et al., 2026). Their claim of cause holds that undetectable recordings leads to harassment and doxxing, measured at roughly 60 percent potential harassment and 43 percent abusive comments in the videos studied (University of Sydney, 2026). A claim of value follows, because people deserve to know when a camera is running so they can decide how to respond (O'Hagan et al., 2022). When smartglass users compare the glasses to phones, bystanders reject the similarity, since raising a phone is a visible act while wearing glasses is not. Their claim of policy is that indicators should be required and tamper-proof (Invasion of Privacy, 2026).

Arguments from Both Ends of the Spectrum

Should camera-equipped smart glasses be legally required to carry a tamper-proof recording indicator?

Pro Smartglasses: Argument for Non-regulated Smart Glasses

Position: Smart glasses users and makers argue against the requirement, and utilitarian ethics supplies the reasoning they use.

Ethical Framework: Utilitarianism took shape in Britain during the eighteenth and nineteenth centuries as an alternative to ethics based on tradition and/or religious authority. Jeremy Bentham gave it its first systematic form, holding that the moral worth of an act is measured only by the pleasure and pain it produces for everyone it affects, also known as the greatest happiness principle (Mill, 1863/2004). John Stuart Mill, raised in Bentham's circle, defended and refined the theory in Utilitarianism. Mill added that pleasures differ in quality and not only in amount, and that anyone making a moral decision must be strictly impartial, counting their own happiness no more heavily than anyone else's (Mill, 1863/2004). Bentham and Mill wrote this framework for lawmakers weighing whether a law is worth passing, which is the argument at issue here.

Argument: The framework of utility reasons that an act is moral such that it promotes happiness, and the majority benefiting from it is large and growing. A market up 167 percent in one year delivers hands-free photography, translation, navigation, and voice assistance, and blind and low-vision users gain real independence at a fraction of the cost of dedicated assistive hardware (Ubrani, 2026; Kelley, 2025). Denning et al. (2014) found bystander reactions divided between indifference and discomfort, so even the bystander side is not harmed as a whole. What counts under this framework is what a rule actually does, not what it was meant to do. By that test the requirement fails. Its cost would fall on every buyer, including assistive users, while a determined wrongdoer would switch to a purpose-built hidden camera (Kelley, 2025).

Course of Action: The correct course on this view is to leave the device alone and legislate against the few who misuse it and cause harm regardless of the tool in hand. The law reaches the small number of people doing the harm and leaves everyone else, including blind and low-vision users, with the same device at the same price (Kelley, 2025).

Stake: What this group gains or loses turns on whether lawmakers pass the indicator requirement. If the law is rejected, they expect the device to keep improving, prices to keep falling, and more blind and low-vision users to be able to afford one (Kelley, 2025; Ubrani, 2026). If the law passes, they expect the hardware to cost more, the range of designs to narrow, and manufacturers to carry the cost of proving compliance. The price increase is the outcome they fear most, because a more expensive device puts the glasses back out of reach of the users who depend on them most (Kelley, 2025).

Against Smartglasses: Argument for Regulations on Smart Glasses

Position: Bystanders and privacy advocates argue for the indicator requirement, and Kantian ethics supplies the reasoning they use.

Ethical Framework: Immanuel Kant built this framework in Prussia in the late eighteenth century as a direct answer to ethics based on consequences, feeling, or religious command, and he laid it out in *Fundamental Principles of the Metaphysic of Morals* in 1785. Kant grounds morality in reason alone, writing that nothing in the world can be called good without qualification except a good will (Kant, 1785/2004). What makes an act worth anything is acting from duty, on principle, rather than the results it happens to produce, so a duty holds even when breaking it would be useful. At the center of it is the moral law Kant states in several different ways (Kant, 1785/2004). Because it judges by principle instead of by total benefit, one bystander's claim is not something a popular convenience gets to outweigh.

Argument: The Humanity formulation says a person may not treat a person merely as a means, and filming a woman without her knowledge for views and income does exactly that. She becomes an instrument of the smartglass user’s purpose. The BBC cases are the plain example, and the measured harassment and abusive comment rates show a pattern rather than an exception

(University of Sydney, 2026). The Universal Law formulation says a person may act only on a rule they would want everyone to follow, and a rule that lets anyone record anyone in secret for personal gain cancels itself out. The candid behavior that kind of recording captures only exists while people believe no camera is running. Make the rule universal and it destroys the thing it was after. So the bystander's claim is not an interest to be weighed against convenience. It is a duty owed, and no amount of benefit somewhere else pays it off.

Course of Action: On this view the right course has three parts. The law should require a tamper-proof recording indicator. The device should stop recording if that indicator is blocked or disabled. And selling the devices, services, and tools built to get around it should be illegal, which is what California Senate Bill 1130 proposes (Invasion of Privacy, 2026). An indicator light that can be covered with tape is not enough of a warning at all, so the answer is a safeguard the wearer cannot remove on their own (Morse, 2026).

Stake: The stakes for bystanders come down to the same vote. If the law passes, they get back the ability to tell that a camera is running, which is the thing researchers keep identifying as missing (O'Hagan et al., 2022; Denning et al., 2014). If it fails, filming in secret, doxxing, and harassment remains available for the few who buy a pair of smartglasses (Agho et al., 2026).

Personal Position

Opinion: Camera-equipped smartglasses should be legally required to have some sort of tamper-proof mechanism that would disable the device if tampered. The reason being is purely due to human decency. Even private venues and/or music events that are explicitly recording provide people with a notice before entry that they’re recording. I suspect that the main company selling this device, Meta, wouldn’t hurt financially from such a requirement. They are already investing millions of dollars in marketing as-is.

Alignment: I side with bystanders and privacy advocates, and with the Kantian framework they use. What decides it for me is that the safeguard we already have fails in practice, not just in theory. Third-party modifications defeat the light, and none of the women the BBC interviewed noticed it. The best point on the other side still stands. The accessibility gains are real, because the glasses give blind and low-vision users independence for far less than purpose-built assistive devices cost.

Recommendation: I have a couple of recommendations related to this matter. First, require an indicator that resists tampering or disables the device if tampered. Second, ban the sale of tools and services built to get around it. Third, pair the requirement with penalties for the conduct itself such as covert filming and doxxing.

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